

25SMCV06313 25SMCV06313

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-01

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Case Number: 25SMCV06313 Hearing Date: September 1, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ROBERT AMES,

Plaintiff,

v.

CHRISTOPHER DAYN WALTON, et al.,

Defendants.

Case No.: 25SMCV06313

Hearing Date: September 1, 2026

[TENTATIVE] order RE:

defendant'S DEMURRER TO

COMPLAINT

This is a malicious prosecution case. Plaintiff Robert Ames alleges that Defendant Christopher Walton wrote a letter to the City of Santa Monica, the Police Chief, the City Attorney and the Mayor, falsely accusing Plaintiff of "dangerous actions and crimes being comminuted upon [Walton's] friend and sexual partner Monique Eagle, as well as her 3- minor children." Walton

supposedly demanded a “No Knock Arrest Warrant” be issued immediately against Plaintiff’s home, claiming “This is a dangerous life threatening situation that requires immediate action.” The letter was allegedly sent on September 12, 2022.

Plaintiff, who appears pro se, has filed two claims for malicious prosecution and intentional infliction of emotional distress. The Complaint was filed on December 8, 2025.

This hearing is on Defendant’s demurrer to the complaint. Defendant argues that the complaint is time barred because the applicable statute of limitations is two years; the allegedly false letter was sent on September 2, 2022; the limitations period therefore expired on September 2, 2024, yet the complaint was not filed until December 8, 2025 which is well after the limitations period. Defendant is appearing in pro se.

Code Civ. Proc. § 430.41 requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).) Defendant has not filed any meet and confer declaration. Accordingly, the Court takes his demurrer off calendar.

IT IS SO ORDERED.

DATED: September 1, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court